

**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK**

Jane Smith, Plaintiff,

v.

Global Tech Inc. and John Roe, Defendants.

Case No: 2024-CV-005678

DEFENDANTS' NOTICE OF MOTION TO DISMISS

PLEASE TAKE NOTICE that Defendants Global Tech Inc. and John Roe, by their counsel Skadden Arps LLP, will move this Court on April 15, 2024 at 9:00 AM, before the Honorable Judge Patricia Williams, for an Order dismissing Plaintiff's Complaint with prejudice pursuant to Federal Rule of Civil Procedure 12(b)(6).

GROUND FOR DISMISSAL

1. Plaintiff fails to state a claim for breach of contract because the employment agreement expressly permitted termination upon demonstrated performance deficiencies.
2. Plaintiff's retaliation claim is time-barred under the applicable 180-day administrative exhaustion period. The EEOC charge was filed January 8, 2024, more than 60 days after the alleged retaliatory act of November 5, 2023.
3. The stock options at issue had not yet vested as of the termination date of December 10, 2023, and therefore no compensable property interest existed.

PROCEDURAL HISTORY

Complaint filed February 20, 2024. Defendants were served March 1, 2024. This motion is timely filed within the 21-day responsive pleading period.

Dated: March 1, 2024

Respectfully submitted,
Skadden Arps LLP
Counsel for Defendants